

## IN THE DEBTS RECOVERY TRIBUNAL-II, MUMBAI

(Under the Recovery of Debts and Bankruptcy Act, 1993)

**O.A. No. 122 of 2022 (Diary No. 1624/2019)**

Bank of India, SARM Branch, Mumbai

...Applicant

— versus —

Babulal Ganeshmal Bohra & Others

...Respondents

### **SECOND SUPPLEMENTARY AFFIDAVIT**

*In support of Interlocutory Application No. 884 of 2026*

*filed by the Intervener / Decree Holder*

**Filed by:** Neeraj Singh Mohnia, Erstwhile Sole Proprietor, M/s Adarsh Impex Enterprise (Decree Holder in Civil Summary Suit No. **1352 of 2017**, City Civil Court, Mumbai — decree dated 05.01.2021), Intervener in IA 884/2026, appearing as Party-in-Person.

A-503, Marathon Eminence, Dadasaheb Gaikwad Marg, Mulund West, Mumbai – 400 080

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### **AFFIDAVIT**

I, Neeraj Singh Mohnia, aged about 58 years, Indian National, Erstwhile Sole Proprietor of M/s Adarsh Impex Enterprise, resident of A-503, Marathon Eminence, Dadasaheb Gaikwad Marg, Mulund West, Mumbai – 400 080, do hereby solemnly affirm and state on oath as follows:

### **PART I — BACKGROUND AND STATUS OF PROCEEDINGS**

#### **1. The Intervener**

That I am the Decree Holder in Civil Summary Suit No. **1352 of 2017** decided by the City Civil Court, Mumbai on 05.01.2021 (decree for Rs. 60,26,730/- at 18% p.a. from date of suit till realisation), and the Intervener in Interlocutory Application No. 884 of 2026 filed in OA 122/2022. I am fully conversant with the facts and am competent to swear this affidavit.

#### **2. Related proceedings before this Tribunal**

That two further OAs concerning the same debtor network are pending before this Hon'ble Tribunal:

1. OA No. 123 of 2022 — Bank of India vs. Ravi Babulal Bohra & Ors. — son of Respondent No. 1 herein — Cash Credit Rs. 6 crore against Hill Point Holiday Resort, Vashi Tare Devrukh, Sangameshwar, Ratnagiri — same branch, same date of sanction (24.03.2017) as OA 122/2022.
2. OA No. 230 of 2024 — ICICI Bank Ltd. vs. Babulal Ganeshmalji Bohra & Ors. — same primary Respondent — next date 26.11.2026 CAOD Ex Parte.

#### **3. Parallel proceedings**

That this Intervener's complaint has been transferred by EOW Mumbai to CBI Mumbai vide **Reference No. 993/VPNI/AJUVI/Unit 7(Shares)/2026 dated 08.05.2026**, naming Shri Babulal Ganeshmal Bohra, Shri Ravi Babulal Bohra, and unnamed officers of Bank of India, Nagpada Branch, as persons whose conduct is the subject of investigation. (Exhibit L-1 — annexed hereto — new exhibit.)

That an Execution Petition (EXE S/9/2026) is also pending before the Civil Court, Vadodara, arising from the same decree.

That **ICICI Bank Ltd.**'s certified copy of OA 230/2024 confirms **an entirely unsecured** personal loan of Rs. 29,50,000 sanctioned to Babulal Ganeshmalji Bohra in December 2016 — five months **after** Bank of India **had already** sanctioned a home loan of Rs. 1.7 **crore to the same** borrower in August 2016, **and** three months **before** Bank of India sanctioned Rs. **5 crore** to Rashmi Steels **from the** same Nagpada Branch in March 2017. **In a seven-month** window **from** August 2016 **to** March 2017, **the Bohra family** network **obtained** approximately **Rs. 37.2 crore across two banks** — **all of which** defaulted **within the same** 12–18 month period. This is submitted as a coordinated credit extraction pattern warranting consolidated examination **BY THIS HON'BLE TRIBUNAL.**

## **PART II — THE MORTGAGED PROPERTY: LEGAL INCAPACITY TO SUSTAIN A VALID MORTGAGE**

That the primary secured property offered to Bank of India — R.S. No. 124, Block 152, Kural Village, Padra Taluka, Vadodara — is incapable of sustaining a valid mortgage on four independent and cumulative grounds, each of which is independently verifiable from official Government records:

### **Ground A — Government Revenue Land under Section 68 GLRC**

That the said land is Government revenue land under Section 68 of the Gujarat Land Revenue Code and is, as a matter of law, incapable of being privately owned or validly mortgaged. The Padra Mamlatdar's revenue records (Property Card No. 2026352962, four Haq Patrak entries, Occupancy Register, and 7/12 Utara — all bearing official digital signatures and QR codes of the Government of Gujarat) confirm this across **37 separate anomalies** documented in the Layperson's Forensic Observation Report, **already on record as Exhibit J-3 in IA 884/2026 dated 26.03.2026 before this Hon'ble Tribunal.**

### **Ground B — Invalid Mortgagor Entity**

That the entity through which the mortgage was purportedly executed — **Shri Maintenance Contract Private Limited (CIN U99999GJ1992PTC017724)** — is a **SHELL COMPANY** with Rs. 40 paid-up capital, **NO** directors on record, **NO** charges registered, an invalid PIN 000000, and **NO** traceable PAN. It has been struck off. (Exhibit D-1 — already on record in IA 884/2026.)

### **Ground C — SARFAESI Without Foundation**

That Section 13(1) of the SARFAESI Act authorises enforcement 'without intervention of court' — this power presupposes a valid security interest. Where the mortgage is void ab initio, there is no security interest to enforce, and all SARFAESI measures taken by Bank of India on the basis of this void mortgage are **without legal authority.**

*Mardia Chemicals Ltd. v. Union of India (2004) 4 SCC 311 — DRT retains jurisdiction to examine foundational validity of security interest even under SARFAESI.*

*United Bank of India v. Satyawati Tondon (2010) 8 SCC 110.*

### **Ground D — Pre-Sanction Due Diligence Failure**

That **Bank of India failed to** conduct mandatory pre-sanction due diligence — specifically title verification, CERSAI search, revenue record verification, MCA check, and independent valuation — **as required by** RBI's Master Circular on Loans and Advances (RBI/2015-16/98). **A mandatory CERSAI search, if** conducted, **would have** immediately revealed **the** Indian Overseas Bank charge (registered 26.03.2012, Charge ID 200003766496) already registered on the same property.

Whether such a search was in fact conducted, and what it revealed, is a matter compellable from the credit appraisal file sought under Part XI of this affidavit.

### **PART III — SHRI MAINTAINANCE CONTRACT PVT. LTD.: SIX GROUNDS OF VOIDNESS**

That the voidness of the mortgage executed through Shri Maintenance Contract Private Limited rests on six independent grounds (Exhibit D-1 — already on record in IA 884/2026 dated 26.03.2026), any one of which is sufficient to invalidate the mortgage:

1. — not the Rs. 1 lakh minimum required under Section 11 of the Companies Act, 1956. **Rs. 40 paid-up capital**
2. on the MCA portal — a company without directors cannot execute any legal instrument. **No directors on record**
3. — despite supposedly mortgaging high-value land, the company has no charge history on the MCA portal. **No charges registered**
4. in MCA master data — not a valid Indian PIN code, indicating fictitious registration data. **Invalid PIN 000000**
5. — a company that conducted real business must hold a PAN. Absence suggests it was never genuinely operational. **No traceable PAN**
6. — the Registrar of Companies has struck this company off the register. **Struck off status**

### **PART IV — FORM CHG-4: ANOMALIES IN THE PURPORTED SATISFACTION OF IOB CHARGE**

That a Form CHG-4 was filed by Light and Glaze Profile Pvt. Ltd. (CIN U27203GJ2011PTC065583) purporting to record satisfaction of the Indian Overseas Bank charge (Exhibit E-2 — already on record in IA 884/2026 dated 26.03.2026). The certified copy of this CHG-4 is annexed hereto as **Exhibit N-1 (new exhibit)**, and carries the following independently verifiable anomalies:

1. The CHG-4 was filed when Light and Glaze Profile Pvt. Ltd. had already been struck off — a with the Registrar of Companies. **struck-off company cannot file statutory forms**
2. The CHG-4 bears the signature of a director with DIN 02080079 (Srinivas Saikumar Anne). The MCA record for Light and Glaze does not evidence any Form DIR-12 or cessation record for Mr. Anne. The — for a company subsequently struck off — is the anomaly warranting production of the company's complete director-history record. **absence of any cessation record**
3. The professional certifier on the CHG-4 is CA Mandowara Raj Kumar (). An independent ICAI search has confirmed this registration number. (Exhibit N-3 — new exhibit.) **ICAI FCA 046468**
4. A direct conflict exists between two statutory registries: the MCA Index of Charges records the IOB charge (Charge ID 10350710, SRN C68405455) as satisfied on 19.10.2015, while CERSAI continues to record the identical charge as NOT SATISFIED as of 20.05.2026 — more than thirteen years after registration. (Exhibit O-1 — new exhibit.) **MCA vs. CERSAI: two official registries contradicting each other**

### **PART V — CERSAI: CONCENTRATED EXPOSURE AND CONTINUING ANOMALIES**

That a search of the CERSAI portal reveals the following (all CERSAI records already on record in IA 884/2026 as Exhibits E-1 to E-5; fresh download of Exhibit E-2 dated 20.05.2026 filed hereto as Exhibit O-1):

1. CERSAI Asset ID 200014613560 — Bank of India, Nagpada Branch — Rs. 29.5 crore ceiling (principal + interest + charges) — Status: . (Exhibit E-1 — on record.) **NOT SATISFIED**
2. CERSAI Asset ID 200003766496 — Indian Overseas Bank, Dandia Bazaar — Rs. 5.78 crore — Status: — thirteen years after registration, notwithstanding the CHG-4. (Exhibit E-2 — on record; Exhibit O-1 — fresh download dated 20.05.2026, new exhibit.) **NOT SATISFIED**
3. CERSAI Asset ID 200017457156 — Bank of India — Rs. 7.5 crore — Status: NOT SATISFIED. Enhancement processed within on 14.11.2017 per CBS Statement Exhibit U already on record. (Exhibit E-3 — on record.) **16 minutes**
4. CERSAI Asset ID 200015123404 — Bank of India, Rashmi International (Ravi Babulal Bohra) — Rs. 7 crore — Status: . Post-default enhancement. (Exhibit E-4 — on record.) **NOT SATISFIED**
5. CERSAI Asset ID 200013767289 — — Ravi Bohra account. (Exhibit E-5 — on record.) **NPA/ARC transfer**

## **PART VI — RASHMI METASTEEL, COSMOS ALUMINIUM AND TAMILNAD MERCANTILE BANK: THE CONNECTED ENTITY PATTERN**

### **A. Rashmi Metasteel Private Limited — Balance Sheet Confirms Shell Nature**

That the Form 23AC of Rashmi Metasteel Private Limited (CIN U27310MH2011PTC213595) for the financial year 2012-13, filed with and certified by the Registrar of Companies, Mumbai (**Exhibit M-3 — new exhibit**), conclusively establishes that this entity:

1. Held , zero intangible assets, and zero capital work-in-progress — a company purportedly in the steel manufacturing business had no machinery, no factory, no equipment of any kind. **zero tangible fixed assets**
2. Earned — consistent with having no production assets and no real commercial activity. **zero operating income**
3. Sourced its entire long-term borrowings of Rs. 23,861,026 exclusively from related parties — with zero borrowings from banks, financial institutions, or any independent third party. Every single rupee of funding came from within the same family/group network. **100% related-party funding**
4. Carried accumulated losses (negative reserves) of Rs. 22,75,814 against a paid-up capital of Rs. 10,00,000 — rendering it at the time of this filing **technically insolvent**

That Shri Ravi Babulal Bohra (DIN 03373639) signed this balance sheet as Director on 05.09.2013 — the same person who, as proprietor of Rashmi International, obtained a Cash Credit facility of Rs. 6 crore from Bank of India, Nagpada Branch on 24.03.2017, approximately three and a half years after this balance sheet confirmed the insolvent and non-operational condition of his connected entity.

That the Intervener respectfully submits that a basic due diligence check on connected entities of the borrower — a step mandated by the RBI Master Circular on Loans and Advances — would have revealed this balance sheet to Bank of India before sanction. **The failure to conduct this check, or the decision to proceed despite it, is a matter that warrants examination.**

### **B. The Anne Nexus — Cosmos Aluminium and Tamilnad Mercantile Bank**

That Srinivas Saikumar Anne (DIN 02080079) — who appears as signing Director on the CHG-4 (Exhibit N-1) — has been independently confirmed as director/managing director of Cosmos Aluminium Private Limited (CIN U10102AP2006PTC049489) during an overlapping period.

That Tamilnad Mercantile Bank registered a charge (**Charge ID 10184567, dated 05.03.2014**) against Cosmos Aluminium for Rs. 4,88,00,000. EPFO records for Cosmos Aluminium's Katapadu operations confirm **zero employees for the 16 months preceding this charge date**. Only Rs. 2,58,00,000 worth of instruments have been located, leaving an unexplained gap of approximately Rs. 2.3 crore.

That these facts are submitted as leads for investigation. The documents necessary to establish or disprove this nexus are in the custody of Tamilnad Mercantile Bank and the Registrar of Companies, and are sought through the production summons prayer in Part XI below.

## **PART VII — VADODARA EXECUTION PROCEEDINGS AND BAILIFF OBSERVATIONS**

That an Execution Petition (EXE S/9/2026) arising from the same decree is pending before the Civil Court, Vadodara. The Intervener's independent site visit to the Padra location revealed that the property associated with the Padra address had been disposed of through a **Bank e-auction** — a SARFAESI proceeding on property the Intervener contends was never validly mortgaged.

That certified copies of the Vadodara court proceedings, including the bailiff's report and orders on the applications filed therein, are awaited and shall be produced before this Hon'ble Tribunal upon receipt.

## **PART VIII — BANK OF INDIA'S CONDUCT: THE 16-MINUTE ENHANCEMENT AND POST-DEFAULT PATTERN**

That the CBS Statement of Bank of India (already on record as Exhibit U in IA 884/2026 dated 26.03.2026) independently reveals:

1. On 14.11.2017, Cash Credit enhanced from Rs. 5 crore to Rs. 7.5 crore. The CBS Statement shows this was processed within — no commercially prudent credit enhancement of Rs. 2.5 crore can be completed in 16 minutes. **16 minutes**
2. A further enhancement of Rs. 1 crore was processed in January 2019 — after the account had already turned NPA. Enhancing a credit limit post-default is a regulatory violation under RBI Master Circular on Loans and Advances. **post-NPA enhancement**
3. Standing instruction entries 'StCon/RS PADRA TO RI CC SOL-ID 25190 VADODRA' in the CBS Statement confirm fund transfers between Rashmi Steels (Babulal) and Rashmi International (Ravi) accounts — confirming fund commingling and group exposure not aggregated under RBI Large Exposure Framework (RBI/2016-17/286). The CBS Statement further confirms a credit entry dated 31.03.2018 described as 'TR FROM RASHMI STEELS — Rs. 7,75,000.00' into the home loan account (Account No. 005575110000081) on the last day before NPA declaration — constituting fund transfer from the commercial Cash Credit account to the personal home loan account, in direct violation of Clause 11 of the Multipurpose Agreement for Loan signed by Babulal Bohra, which explicitly prohibits 'Non-Diversion/Siphoning Off of Funds.' **fund commingling — Rs. 7,75,000 siphoned on eve of NPA**
4. Both OA 122/2022 (BOI vs. Babulal, Padra collateral) and OA 123/2022 (BOI vs. Ravi, Ratnagiri collateral) were sanctioned from Nagpada Branch on the — with aggregate connected-party exposure exceeding Rs. 44 crore without required aggregation under the Large Exposure Framework. **same date — 24.03.2017**
5. That page 3 of the Multipurpose Agreement for Loan (Form L-516) executed in August 2016 — BOI's own certified court document filed in OA 122/2022 — contains a handwritten self-declaration by Babulal Ganeshmal Bohra disclosing the following existing credit facilities at the time of applying for the home loan: (i) Rashmi Steels — BOI Nagpada Branch — Cash Credit Rs. 1,500 lacs and Term



Loan Rs. 600 lacs; (ii) Rashmi Tubes (Proprietor: Sangeeta Bohra) — Cash Credit Rs. 500 lacs — a fourth connected entity in the network now court-confirmed; (iii) Ravi Bohra — Term Loan Rs. 7 lacs; (iv) Babulal Bohra — Term Loans Rs. 2.57 lacs and Rs. 9 lacs. Total self-declared existing exposure: approximately Rs. 26.18 crore from BOI Nagpada Branch alone at the time of applying for the additional home loan. That the violation of the Large Exposure Framework in this case is distinguished from an inadvertent oversight by one critical fact: the borrower's own handwritten self-declaration placed the full Rs. 26.18 crore connected-party exposure in writing before the sanctioning officer. That the sanctioning officer — whose identity will be confirmed from the credit committee minutes compellable under Part XI of this affidavit — proceeded with the sanction despite this written disclosure, without applying the LEF aggregation requirement, constituting not an oversight but a knowing regulatory violation attracting Section 13 of the Prevention of Corruption Act, 1988 and Section 409 of the Indian Penal Code. **BOI had full written knowledge — Rs. 26.18 crore self-declared — violation not inadvertent**

## **PART IX — OA 123/2022: THE RATNAGIRI COLLATERAL AND THE IDENTICAL PATTERN**

That certified copies of the initial pages of OA 123/2022 were received on 14.08.2026 and are annexed hereto as **Exhibits R-1 and R-2 (new exhibits)**. These reveal:

1. Sanction Letter dated 24.03.2017 (Exhibit A in OA 123/2022) confirms Cash Credit of Rs. 6 crore to Rashmi International (proprietor: Ravi Babulal Bohra), Nagpada Branch — as OA 122/2022. (Exhibit R-1.) **same branch and same date**
2. Collateral is equitable mortgage of , Village Vashi Tare Devrukh, Sangameshwar, Ratnagiri (Survey Nos. 138/139), recorded in CERSAI Asset ID 200015123404. (Exhibit R-1.) **Hill Point Holiday Resort**
3. Independent Mahabhulekh 7/12 search for Survey 138/139, Village Devrukh, Taluka Sangameshwar, District Ratnagiri reveals that (registered landowner) in any sub-plot examined — identical to the Padra pattern. (Exhibit T-1 — new exhibit.) **neither Ravi Babulal Bohra nor Rashmi International appears as Khatedar**
4. The Vakalatnama of OA 123/2022 (Exhibit R-2) confirms Nahush Shah Legal, Office No. 54, 5th Floor, Bajaj Bhavan, Nariman Point, Mumbai 400021, as advocate on record — same firm acting for Bank of India in both OA 122/2022 and OA 123/2022. **same firm acting for Bank of India in both OAs**

## **PART X — URGENCY: SECTION 19(26), THE CBI INVESTIGATION, AND PREJUDICE TO INTERVENER**

That OA 122/2022 has been pending for approximately **78 months** since filing in January 2019. Section 19(26) of the Recovery of Debts and Bankruptcy Act, 1993 mandates disposal within six months. The pendency represents a factor of **13 times the statutory mandate**.

That an ex parte CAOD order on void security, without examination of the foundational validity of the mortgage, would cause **irreversible prejudice** to the Intervener as decree holder, whose right to surplus from any realisation is directly affected.

That the active CBI investigation (Exhibit L-1 — new exhibit) into the same network makes it imperative that this Hon'ble Tribunal consider the pace of proceedings carefully before passing any order of attachment, auction, or realisation that may create a fait accompli prejudicing the investigation.

*Mardia Chemicals Ltd. v. Union of India (2004) 4 SCC 311.*

*ITC Ltd. v. Blue Coast Hotels Ltd. (2018) 15 SCC 99.*

*Transcore v. Union of India (2008) 1 SCC 125.*

## **PART XI — PRAYER FOR PRODUCTION SUMMONS**

That the Intervener most respectfully prays for production summons to the following parties for the following documents, essential for complete adjudication of OA 122/2022:

1. Bank of India, Nagpada Branch: Complete for Rashmi Steels Cash Credit — original title documents deposited, CERSAI search report, independent valuation report, sanction committee minutes — all sanctions and enhancements 2016–2019. **credit appraisal file**
2. Bank of India, Nagpada Branch: CBS loan account statement for Rashmi International (Ravi Babulal Bohra) — all entries, standing instructions, fund transfers to/from Rashmi Steels account — 2017 to NPA declaration. **Rashmi International CBS statement**
3. Bank of India, Nagpada Branch: Identity and service record of Shri (affiant in both OA 122/2022 and OA 123/2022) — designation on 24.03.2017, authority to approve enhancements, credit committee composition. **Surendra Waman Pagare**
4. Indian Overseas Bank, Dandia Bazaar Branch: Complete charge documents for Charge ID 200003766496 — original security documents, NOC if any, for comparison with the CHG-4 filed by Light and Glaze. **actual discharge document**
5. Registrar of Companies, Ahmedabad: Complete director history of Light and Glaze Profile Pvt. Ltd. (CIN U27203GJ2011PTC065583) — all DIR-12 filings, specifically any cessation record for DIN 02080079 (Srinivas Saikumar Anne). **DIR-12 filings for DIN 02080079**
6. Registrar of Companies, Ahmedabad: Complete filing history of Shri Maintainance Contract Pvt. Ltd. (CIN U99999GJ1992PTC017724) — annual returns, directors, charges, and all RoC correspondence. **Shri Maintainance Contract filing history**
7. CERSAI: Complete charge history for Asset IDs 200014613560, 200003766496, 200017457156, 200015123404, and 200013767289 — all modifications, satisfaction filings, and current responsible lender of record. **complete CERSAI charge history**
8. Sub-Registrar, Padra: Registration records for any sale, mortgage, or assignment of R.S. No. 124, Kural Village, Padra — 2010 to date. **Sub-Registrar Padra**
9. Sub-Registrar, Sangameshwar: Registration records for any mortgage of Survey Nos. 138/139, Village Devrukh, Taluka Sangameshwar — 2015 to date. **Sub-Registrar Sangameshwar**
10. Tamilnad Mercantile Bank: Sanction committee minutes, credit appraisal file, and complete charge documents for Charge ID 10184567 (05.03.2014) against Cosmos Aluminium Pvt. Ltd. (CIN U10102AP2006PTC049489) — specifically the basis for the discrepancy between Rs. 4,88,00,000 charged and Rs. 2,58,00,000 in instruments. **Tamilnad Mercantile Bank: Rs. 2.3 crore discrepancy**

## **PART XII — CONSOLIDATED PRAYER**

In view of the foregoing, the Intervener / Decree Holder most respectfully prays that this Hon'ble Tribunal may be pleased to:

1. Stay any further proceedings under the ex parte CAOD order in OA 122/2022 pending examination of the foundational validity of the security interest; **Stay CAOD**

2. Direct thorough examination of the argument set out in Part II before any order of attachment, auction, or realisation; **void mortgage**
3. Issue to the parties and authorities named in Part XI above; **production summons**
4. OA 122/2022, OA 123/2022, and OA 230/2024 for joint and consolidated hearing before the same Presiding Officer; **Tag and list**
5. Take judicial notice of the active (Reference No. 993/VPNI/AJUVI/Unit 7(Shares)/2026 dated 08.05.2026) and consider its pendency before passing any order; **CBI investigation**
6. Direct Bank of India to file a fresh affidavit disclosing: (i) whether pre-sanction CERSAI search was conducted; (ii) whether the 16-minute enhancement was approved by competent authority; (iii) whether the post-NPA enhancement was approved and by whom; **fresh affidavit from Bank of India**
7. Direct that the surplus, if any, from realisation in OA 122/2022 shall be kept in a pending disposal of the Intervener's decree claim; **separate interest-bearing account**
8. Pass such other orders as this Hon'ble Tribunal may deem just and proper in the **interests of justice**

## **VERIFICATION**

I, Neeraj Singh Mohnia, the deponent above-named, do hereby verify that the contents of the above affidavit are true and correct to the best of my knowledge, belief, and information, and that nothing material has been concealed therefrom.

That the Intervener, appearing as a Party-in-Person without legal training, has independently compiled, verified, and presented this affidavit and its supporting exhibits entirely from official Government records, certified court documents, and publicly accessible regulatory portals — spanning multiple forums, multiple RTI threads, multiple certified copy applications, and multiple simultaneous proceedings across DRT-II Mumbai, CBI Mumbai, RBI, and various Information Commissions.

That given the extraordinary volume and complexity of numerical, statistical, legal, documentary, and procedural detail that this exercise has entailed — across CERSAI Asset IDs, MCA filings, revenue records, CBS statements, charge satisfaction forms, company registration numbers, RTI registration numbers, court case numbers, exhibit references, and statutory citations — the Intervener candidly acknowledges that inadvertent errors of transcription, computation, or citation may exist in this affidavit or its enclosures.

That the Intervener remains firmly committed to correcting any such error upon identification, provided such correction is sought in good faith and the error materially affects the substance, spirit, or intent of the submissions made herein.

That no such inadvertent error — whether of a date, a figure, a reference number, or a citation — affects or diminishes the core factual foundation of this affidavit, which rests entirely upon official Government records bearing digital signatures, QR codes, and certification stamps of the competent authorities, independently verifiable by this Hon'ble Tribunal at any time.

That the Intervener respectfully submits that the spirit, intent, and good faith of these proceedings speak for themselves — and requests that this Hon'ble Tribunal receive this affidavit in the same spirit in which it has been prepared.



Verified at Mumbai on this 25<sup>th</sup> day of August 2026.

Deponent

Neeraj Singh Mohnia

Before me:

Notary / Oath Commissioner

**EXHIBIT TABLE — SECOND SUPPLEMENTARY AFFIDAVIT**

**Note:** Exhibits marked “On record” were filed with the original IA 884/2026 dated 26.03.2026 and are already before this Hon’ble Tribunal. Exhibits marked “NEW” are filed for the first time with this Second Supplementary Affidavit and are covered by the Section 65B Certificate (Exhibit S-1).

| #  | Exhibit  | Description                                                                                                                 | Status                |
|----|----------|-----------------------------------------------------------------------------------------------------------------------------|-----------------------|
| 1  | A-1      | Decree — Civil Summary Suit No. 1352/2017 — City Civil Court, Mumbai — 05.01.2021 (suit number corrected from 1351 to 1352) | On record / Corrected |
| 2  | B-1      | DRT portal — OA 122/2022 — CAOD Ex Parte status screenshot                                                                  | On record             |
| 3  | B-2      | DRT portal — Respondent details — Mehta Court, Lamington Road address                                                       | On record             |
| 4  | C-1      | Property Card No. 2026352962 — Padra Mamlatdar — Govt of Gujarat digital signature — 17.03.2026                             | On record             |
| 5  | C-2(a-d) | Haq Patrak — Nodh Nos. 483, 1549, 1507, 1190 — Padra Mamlatdar                                                              | On record             |
| 6  | C-3      | Gaon Namuno No. 12 — Occupancy Register — Mamlatdar Seal                                                                    | On record             |
| 7  | C-4      | 7/12 Utara — RV24g — Survey 124 Block 152 — Mamlatdar Seal                                                                  | On record             |
| 8  | D-1      | MCA Strike Off — Shri Maintenance Contract Pvt. Ltd. (CIN U99999GJ1992PTC017724)                                            | On record             |
| 9  | E-1      | CERSAI 200014613560 — BOI Nagpada — Rashmi Steels — Rs. 29.5 crore ceiling — NOT SATISFIED                                  | On record             |
| 10 | E-2      | CERSAI 200003766496 — IOB Dandia Bazaar — Light & Glaze — Rs. 5.78 crore — NOT SATISFIED                                    | On record             |
| 11 | E-3      | CERSAI 200017457156 — BOI — 16-minute enhancement — Rs. 7.5 crore — NOT SATISFIED                                           | On record             |
| 12 | E-4      | CERSAI 200015123404 — BOI — Rashmi International (Ravi Bohra) — Rs. 7 crore — NOT SATISFIED                                 | On record             |
| 13 | E-5      | CERSAI 200013767289 — Ravi Bohra NPA/ARC transfer — NOT SATISFIED                                                           | On record             |
| 14 | F-1      | BOI e-Auction Notice — Free Press Journal — 20.07.2020                                                                      | On record             |
| 15 | J-1      | Fraud Flowchart — Modus Operandi diagram                                                                                    | On record             |
| 16 | J-2      | CERSAI Summary Table — Rs. 44 crore+ concentration — BOI Nagpada                                                            | On record             |
| 17 | J-3      | Layperson’s Forensic Observation Report — 37 anomalies across 19 official Government records                                | On record             |
| 18 | J-4      | Statement of Pending and Related Proceedings — Updated as of 25.08.2026                                                     | Updated               |
| 19 | L-1      | EOW Mumbai → CBI Transfer Letter — Ref. 993/VPNI/AJUVI/Unit 7(Shares)/2026 — 08.05.2026                                     | NEW                   |

| #  | Exhibit | Description                                                                                                                                                                                                    | Status           |
|----|---------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|
| 20 | M-2     | Form 20B — Rashmi Metasteel Pvt. Ltd. — RoC Mumbai certified copy                                                                                                                                              | On record        |
| 21 | M-3     | Form 23AC — Rashmi Metasteel Pvt. Ltd. — Ravi Bohra as director, zero fixed assets, 100% related-party funding                                                                                                 | NEW              |
| 22 | M-4C    | MCA Strike Off — Rashmi Metasteel Pvt. Ltd. — 09.11.2018                                                                                                                                                       | On record        |
| 23 | M-5A    | MCA Strike Off — Light and Glaze Profile Pvt. Ltd.                                                                                                                                                             | On record        |
| 24 | N-1     | Form CHG-4 — Light and Glaze Profile Pvt. Ltd. — Certified copy — 7 anomalies identified                                                                                                                       | NEW              |
| 25 | N-2     | CERSAI Asset ID 200028262710 — S.G. Preservatives / Bank of Baroda — Asoj Village — secured value increased Rs. 22.00 crore (2019) to Rs. 25.16 crore (2022), registered owner distinct from borrowing company | NEW              |
| 26 | N-3     | CA Mandowara Raj Kumar — ICAI FCA 046468 — credential confirmation (CHG-4 certifier)                                                                                                                           | NEW              |
| 27 | O-1     | CERSAI 200003766496 — fresh download 20.05.2026 — IOB charge STILL NOT SATISFIED post-CHG-4                                                                                                                    | NEW              |
| 28 | P-1     | BOI Nagpada email — 18.05.2026 — institutional refusal + internal referral admission                                                                                                                           | NEW              |
| 29 | P-2     | Intervener's reply to BOI email — 19.05.2026                                                                                                                                                                   | NEW              |
| 30 | Q-1     | IOB RTI response — CPIO returned Intervener's own application (legal nullity as response)                                                                                                                      | NEW              |
| 31 | R-1     | OA 123/2022 — Sanction Letter dated 24.03.2017 — Rashmi International Rs. 6 crore — Ratnagiri collateral — certified copy received 14.08.2026                                                                  | NEW              |
| 32 | R-2     | OA 123/2022 — Vakalatnama — Nahush Shah Legal — Office 54, 5th Floor, Bajaj Bhavan, Nariman Point                                                                                                              | NEW              |
| 33 | S-1     | Section 65B Certificate — covering all electronically obtained records in this affidavit — filed separately                                                                                                    | Filed separately |
| 34 | T-1     | Mahabhulekh 7/12 Satbara — Survey 138/139, Devrukh, Sangameshwar, Ratnagiri — neither Ravi Bohra nor Rashmi International as Khatedar                                                                          | NEW              |

**Place:** Mumbai**Date:** 25<sup>th</sup> August 2026

Neeraj Singh Mohnia

Intervener / Decree Holder / Party-in-Person

IA 884/2026 in OA 122/2022, DRT-II Mumbai